

**HIGH COURT OF JAMMU AND KASHMIR
AT JAMMU**

MA 169/2015
IA 1/2015

National Insurance Company Ltd

Through : Mr. Suneel Malhotra Advocate
V/s

Sansar Chand and others

.....Respondent(s)

Through :- None

Coram: HON'BLE MR. JUSTICE SANJEEV KUMAR, JUDGE

ORDER(ORAL)

1 This appeal filed by the National Insurance Company Ltd., in terms of Section 173 of Motor Vehicles Act, is directed against the award dated 13.03.2015 passed by the Motor Accident Claims Tribunal, Jammu under Section 140 of MV Act in claim petition No.368/2014 titled "Sansar Chand and others vs. Pawan Kumar and others".

2 Learned counsel appearing for the appellant fairly states that the Tribunal has passed the final award and the same is already under challenge in MA No. 165/2017.

3 In view of the aforesaid, the interim award has emerged with the final award which is already assailed by the appellant in the aforesaid appeal.

4 This appeal has, therefore, been rendered infructuous. The same is, accordingly, dismissed. Needless to say that the pleas, which have been raised by the appellant herein, shall be available to it in MA 165/2017 filed against

the final award and disposal of this appeal shall not come in the way of the appellant in any manner.

(SANJEEV KUMAR)
JUDGE

Jammu
03.07.2020
Sanjeev

Whether the order is speaking: Yes.
Whether the order is reportable: Yes/No.

